

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Squad #11	CCRB Case #: 201411157	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 10/31/2014 11:02 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/30/2016	Precinct: 101
Date/Time CV Reported Mon, 11/03/2014 9:12 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/03/2014 9:12 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM James Murphy	14857	926095	101 PCT
2. SGT Keith Gallagher	00371	938517	101 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Carson	04703	948753	101 PCT
2. POM Matthew Glynn	1797	945767	101 PCT
3. SGT Steve Crozier	02379	929964	101 PCT
4. POM Brian Chavanne	02831	934618	101 PCT
5. POM Robert Breuer	22487	952490	101 PCT
6. POM Francis Devlin	24637	952670	101 PCT
7. POM Javier Rios	20224	952167	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Keith Gallagher	Abuse: Sgt. Keith Gallagher entered and searched § 87(2)(b), in Queens.	A . Exonerated
B . POM James Murphy	Abuse: PO James Murphy entered § 87(2)(b), in Queens.	B . Exonerated
C . SGT Keith Gallagher	Discourtesy: Sgt. Keith Gallagher spoke discourteously to § 87(2)(b) and § 87(2)(b)	C . Unfounded
D . An officer	Force: An officer used physical force against § 87(2)(b) and § 87(2)(b)	D . Officer(s) Unidentified
E . An officer	Force: An officer struck § 87(2)(b) with an asp.	E . Exonerated
F . An officer	Discourtesy: An officer spoke discourteously to § 87(2)(b).	F . Exonerated
G . SGT Keith Gallagher	Discourtesy: Sgt. Keith Gallagher spoke discourteously to § 87(2)(b)	G . Substantiated

Case Summary

On October 31, 2014, a little after 10:30 p.m., Sgt. Keith Gallagher and PO James Murphy, both of the 101st Precinct, were informed by the building security at § 87(2)(b) in Queens that § 87(2)(b) who was banned from the building complex, was present on the 9th floor. The officers saw § 87(2)(b) enter § 87(2)(b) which belong to his ex-wife § 87(2)(b). Sgt. Gallagher and PO Murphy followed him into the apartment, and tried to apprehend him (**Allegations A and B**). As he tried to grab § 87(2)(b) Sgt. Gallagher allegedly said, “Get the fuck out of here” (**Allegation C**). Two pitbulls latched onto PO Murphy, and the officers retreated into the hallway, and waited for back up to arrive. § 87(2)(b) argued with the officers. Sgt. Gallagher allegedly asked, “Why are you acting like a bitch?” (**Allegation C cont’d**). Back up arrived and entered the apartment. § 87(2)(b) alleged that an officer she could not see elbowed her in the right eye (**Allegation D**). When § 87(2)(b) tried to prevent the officers from removing § 87(2)(b) an officer allegedly kicked her in the back of her right calf (**Allegation D cont’d**). § 87(2)(b) alleged that an officer or officers, whom he could not see, punched and elbowed him in the right cheek and right side of his forehead (**Allegation D cont’d**). An officer struck § 87(2)(b) with an asp (**Allegation E**). During the struggle, an officer told § 87(2)(b) “Give me your fucking hands” (**Allegation F**). As the officers walked out with § 87(2)(b) Sgt. Gallagher believed that § 87(2)(b) tried to grab his gun, and said, “Don’t fucking try to grab my gun” (**Allegation G**). When the officers were leaving, Sgt. Gallagher was telling some newly arrived officers about what had transpired, and told them, in reference to § 87(2)(b) “This one’s fucking crazy” (**Allegation G cont’d**). Two videos captured some of the incident (encl. 7A-B).

Mediation, Civil and Criminal Histories

This case was unsuitable for mediation. On June 22, 2015, an inquiry was sent to the NYC Comptroller’s Office regarding whether § 87(2)(b) or § 87(2)(b) has filed a notice of claim. Results are pending and will be included in the case file upon their receipt.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

[§ 87(2)(b)]

(b)]

§ 86(1)

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b) and § 87(2)(b) s first with the CCRB.
- Sgt. Gallagher has been a member of the NYPD for nine years, and has one substantiated allegation against him. In CCRB case number 201213975, a vehicle search allegation was substantiated against him. The case is with the APU.
- PO Murphy has been a member of the NYPD for 15 years, and there are no substantiated allegations against him.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that an officer or officers she could not see elbowed her in the right side of the face, and kicked her in the back of the calf. § 87(2)(b) alleged that while the officers handcuffed him, an officer or officers punched him in the right cheek and right side of his forehead; and elbowed him in the right side of his forehead. Neither § 87(2)(b) nor § 87(2)(b) could see the officers that they alleged used this force against them. No officer

is captured taking these actions in the video footage of the incident. No officer interviewed acknowledged using this force against § 87(2)(b) or § 87(2)(b) or could identify who did. § 87(2)(g)

It is undisputed that § 87(2)(b) was struck with an asp, but he could not see which officer or officers struck him. All of the officers interviewed denied being the officer who used the asp during the struggle, or saw who did. No specific officer is seen using his asp in the video footage. An officer is heard in the video footage telling § 87(2)(b) “Give me your fucking hands,” but the source of this command cannot be seen. Neither § 87(2)(b) nor § 87(2)(b) alleged that a particular officer made this comment. All of the officers interviewed denied making this comment during the incident or hearing anyone else make it. None were able to identify the officer upon hearing his voice in the video footage. § 87(2)(g)

Allegations not pleaded

§ 87(2)(g)

Allegation A—Abuse of Authority: Sgt. Keith Gallagher entered § 87(2)(b) in Queens.

Allegation B—Abuse of Authority: PO James Murphy entered § 87(2)(b) in Queens.

§ 87(2)(g)

It is undisputed that Sgt. Gallagher and PO Murphy first saw § 87(2)(b) in the hallway on the ninth floor, and only entered § 87(2)(b) when they saw him enter. They were forced to exit the apartment soon thereafter due to the presence of unrestrained pitbulls. The video footage of the incident demonstrates that Sgt. Gallagher requested that § 87(2)(b) exit the apartment and submit to arrest numerous times, and also informed him that if he did not do so, officers would have to come into the apartment to retrieve him. § 87(2)(g)

When officers see a defendant that they have probable cause to arrest in a public place, the defendant may not escape arrest by retreating into a private place. *People v. Skinner*, 284 A.D.2d 906 (4th Dept. 2001) (encl. 1A).

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation C—Discourtesy: Sgt. Keith Gallagher spoke rudely to § 87(2)(b) and

§ 87(2)(b)

§ 87(2)(b) alleged that as Sgt. Gallagher entered the apartment and tried to apprehend him, he told § 87(2)(b) “Get the fuck out of here (encl. 5A-H).” § 87(2)(b) alleged that as she argued with Sgt. Gallagher over whether § 87(2)(b) should be arrested, Sgt. Gallagher asked her, “Why are you being such a bitch (encl. 6A-K)?” § 87(2)(b) did not corroborate § 87(2)(b)'s allegation, and he did not corroborate hers.

Sgt. Gallagher denied making either of these statements, and all of the officers interviewed denied that he made either of them. The video footage of the incident does not capture Sgt. Gallagher making either of these alleged statements although it does capture the time period in which they were allegedly made.

§ 87(2)(g)

§

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation C** be closed as **unfounded**.

Allegation D—Force: An officer used physical force against § 87(2)(b)

and § 87(2)(b)

§ 87(2)(b) stated that when officers were trying to put him in handcuffs, an officer or officers he could not see allegedly punched his right cheek and punched and elbowed his forehead. He did not state that he saw force used on § 87(2)(b) aside from when she intertwined her arm with his while the officers were trying to handcuff him, her arm was allegedly twisted.

§ 87(2)(b) stated that when she was still intertwined with § 87(2)(b)'s arm, an officer she could not see kicked the back of her right calf, although she was not certain it was intentional and not merely part of the struggle. Once she was separated, an officer she could not see allegedly elbowed her in the right eye.

The video doesn't capture specific actions, due to the § 87(2)(g) camera moving, and numerous officers often standing around the civilians and blocking the view. When § 87(2)(b) is apprehended, § 87(2)(b) is heard complaining about her knee.

None of the officers recalled punching, elbowing, or kicking § 87(2)(b) or § 87(2)(b) or seeing another officer do so (encl. 8M-O, 9F-H, 10D-F, 11G-I). PO Carson injured his ankle as a result of this incident (encl. 8D, 11C).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

It is therefore recommended that **Allegation D** be closed as **officers unidentified**.

Allegation E—Force: An officer struck § 87(2)(b) with an asp.

Allegation F—Discourtesy: An officer spoke rudely to § 87(2)(b)

§ 87(2)(b)'s noncompliance compelled Sgt. Gallagher to call for back up, and necessitated numerous officers' entry into § 87(2)(b)'s apartment. His continued resistance incited a protracted struggle, which was captured by the video footage of the incident. Although his arrest was the only one effected at the scene, it required the participation of many officers and the video clearly captures the continued inherent danger of the dogs in the apartment. After minutes of struggling with § 87(2)(b) while he tries to get away from the officers and prevents them from getting to his hands, an officer struck him in the leg with an asp, and an officer told him, "Give me your fucking hands."

Patrol Guide Procedure 203-11 mandates that officers use the minimum force necessary to overcome resistance, and non-lethal alternatives to physical force should be employed as appropriate (encl. 3J-K). An officer's use of an expletive in a verbal command is not considered to be actionable misconduct if it is used to facilitate cooperation rather than as a gratuitous and disrespectful remark. *NYPD v. White*, OATH Index No. 78667/03 (October 7, 2004) (encl. 1B-E). The use of profanity by police officers has been tolerated when used upon effecting an arrest to prompt the defendant's submission to handcuffs. *NYPD v. Dukes*, OATH Index Nos. 1137-3800 (April 26, 2000) (encl. 2A-I).

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§ 87(2)(b) It is therefore recommended that
Allegations E and F be closed as exonerated.

Allegation G—Discourtesy: Sgt. Keith Gallagher spoke rudely to § 87(2)(b)

§ 87(2)(b)
Sgt. Gallagher believed that § 87(2)(b) was trying to remove his gun from its holster. He told her, "Don't fucking try to grab my gun," and "You're out of your fucking mind." After § 87(2)(b) had been removed from the scene, Sgt. Gallagher was speaking to other officers in the hallway outside of § 87(2)(b)'s apartment. In reference to § 87(2)(b)

Patrol Guide Procedure 203-09 mandates that a police officer must be courteous and respectful when interacting with the public (encl. 3A). The use of profanity by an officer may be permissible if it is used to gain a civilian's cooperation, but it constitutes misconduct if it is an expression of angry retaliation, even if it is provoked by the civilian's own belligerence or obscene remarks, as it is likely to incite anger rather than facilitate cooperation. *NYPD v. Jean-Mary*, OATH Index No. 129/01, (encl. 3B-I).

Team: _____

Reviewer: _____

Title/Signature	Print	Date
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